



**Order under Section 69
Residential Tenancies Act, 2006**

Citation: Tailor v Akin, 2025 ONLTB 96832

Date: 2025-12-18

File Number: LTB-L-032077-25

In the matter of: 2509, 1 SCOTT ST
TORONTO ON M5E1A1

Between: Sasha Tailor Landlord

And

Andac Asrin Akin Tenants Arda Anil Akin

Sasha Tailor (the 'Landlord') applied for an order to terminate the tenancy and evict Andac Asrin Akin and Arda Anil Akin (the 'Tenants') because the Landlord in good faith requires possession of the rental unit for the purpose of residential occupation for at least one year.

This application was heard by videoconference on September 17, 2025.

The Landlord, the Landlord's Representative, Sasha Ajodhia, and the Tenants attended the hearing.

Determinations:

1. As explained below, the N12 notice was not give to the Tenants 60 days prior to the date of termination. Therefore, the Landlord chose to withdraw the application, and I consented to the withdrawal.

Service of the N12 notice of termination

2. Section 48(2) of the *Residential Tenancies Act*, 2006 (the 'Act') requires the date of termination in an N12 notice of termination ("N12 notice") be at least 60 prior to the date the notice is given to the tenant. In other words, the Tenant is to be provided the notice of termination at least 60 days prior to the date of termination listed. Here, the N12 notice had a date of termination of April 30, 2025. The Landlord submitted a certificate of service that the N12 notice was emailed to the Tenant on February 27, 2025, and mailed to the Tenant on the same day.

3. Section 191 of the Act provides the how a notice or document can be given to a person. Section 191 does not specifically indicate that notice may be given via email but section 191(1)(g) provides that any other means allowed in the Rules is also permissible.
4. Rule 3.1 of the Board's Rules of Procedure provides that parties may consent to service via email in writing.

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5. Therefore, in order for a notice to be validly given via email, the parties must consent to service via email in writing. Here, the Landlord was unable to provide any written consent from the Tenants. The Landlord also gave the Tenants the N12 notice via mail, however that was not deemed effective until March 4, 2025, which was less than 60 days notice as required by section 48(2) of the Act.
6. Based on the evidence before me, I am not satisfied that the N12 notice was properly served to the Tenants.
7. However, section 191(2) of the Act provides that when notice is not given in accordance with the Act, it shall be deemed validly given if it is proven the contents actually came to the attention of the Tenant within the required time period.
8. Here, the Landlord was unable to provide any evidence that the N12 notice actually came to the attention of the Tenants within the required time period, i.e. 60 days prior to the date of termination listed on the N12 notice. The Landlord was unable to provide any emails, texts, or other evidence that confirmed the Tenants had in fact seen the N12 notice.
9. As such, I am not satisfied that the Tenants were provided the N12 notice 60 days prior to the date of termination and therefore, the N12 notice was invalid.
10. The Landlord therefore chose to withdraw the application.
11. The Landlord had paid the Tenants one month's compensation as required by section 48.1 and 55.1 of the Act, however the cheque had not been cashed by the Tenants. The Tenants agreed to return the cheque on or before September 30, 2025.
12. If the Tenants have not already returned the cheque or have cashed the cheque then, in accordance with section 73.1(10) of the Act, the Tenants are ordered to pay back the compensation they received from the Landlord.

It is ordered that:

1. The Landlord's application is dismissed as withdrawn.

2. If the Tenants have not already done so, the Tenants shall return to the Landlord the compensation that was paid to the Tenant on or about April 15, 2025.

December 18, 2025

Date Issued

Nicole Pedron

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor Toronto
ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

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